

EXHIBIT 1

BARGAIN AND SALE DEED, WITHOUT COVENANT AGAINST GRANTOR'S ACTS

THIS INDENTURE, made as of the 22nd day of March, 2007

BETWEEN **R. Born Associates**, a New York general partnership, which took title under the incorrect name of Robert Born Associates, having an address at Wellington Hotel 871 Seventh Avenue, New York, New York 10019, party of the first part, and

West 42nd Street Developers, LLC, a New York limited liability company, having an address at Wellington Hotel 871 Seventh Avenue, New York, New York 10019, party of the second part.

WITNESSETH, that the party of the first part, in consideration of Ten Dollars, and other valuable consideration paid by the party of the second part, does hereby grant and release unto the party of the second part, the heirs or successors and assigns of the part of the second part forever,

ALL that certain plot, piece or parcel of land, with the buildings and improvements thereon erected, situate, lying and being in the City of New York, County of New York and State of New York, all as more particularly described on Schedule A, annexed hereto and made an integral part hereof;

TOGETHER with all right, title and interest, if any, of the party of the first part in and to any streets and roads abutting the above described premises to the center lines thereof;

TOGETHER with the appurtenances and all the estate and rights of the party of the first part in and to said premises;

TO HAVE AND TO HOLD the premises herein granted unto the party of the second part, the heirs or successors and assigns of the party of the second part forever;

AND the party of the first part, in compliance with Section 13 of the Lien Law, covenants that the party of the first part will receive the consideration for this conveyance and will hold the right to receive such consideration as a trust fund to be applied first for the purpose of paying the cost of the improvement and will apply the same first to the payment of the cost of the improvement before using any part of the total of the same for any other purpose.

The word "party" shall be construed as if it read "parties" whenever the sense of this indenture so requires.

(No further text appears on this page.)

510 West 42nd St.

IN WITNESS WHEREOF, the party of the first part has duly executed this deed the day and year first above written.

In presence of:

R. Born Associates

By: 
Name: Richard Born
Title: Partner

STATE OF NEW YORK)

) ss:

COUNTY OF NEW YORK)

On the 22 day of March in the year 2007, before me, the undersigned, a Notary Public in and for said State, personally appeared Richard Born, personally known to me or proved to me on the basis of satisfactory evidence to be the individual whose name is subscribed to the within instrument and acknowledged to me that he executed the same in his capacity, and that by his signature on the instrument, the individual, or the person upon behalf of which the individual acted, executed the instrument.

RITA DATTOLA
Notary Public, State of New York
No. 02DA5008932
Qualified in New York County
Certificate Filed in New York County
Commission Expires March 8, 2007
Q011


Notary Public

SEAL

SCHEDULE A

LEGAL DESCRIPTION

[Attached]

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LEGAL DESCRIPTION

PARCEL B:

ALL that certain volume of space in the Borough of MANHATTAN, the City of NEW YORK, the County of NEW YORK, and the State of NEW YORK, which lies above the existing inclined horizontal plane, the elevation of which is 18 feet above the top of the rail of the existing railroad and which is bounded by and lies within the vertical planes which are respectively formed by projecting vertically upwards the boundaries of the following described parcel:

ALL that certain lot, piece or parcel of land, situate, lying and being in the Borough of MANHATTAN, City, County and State of NEW YORK, bounded and described as follows:

BEGINNING at a point on the northerly side of WEST 41ST STREET, distant 198 feet 2 inches westerly from the corner formed by the intersection of the said northerly side of WEST 41ST STREET with the westerly side of 10TH AVENUE;

running thence, the following twelve courses and distances:

1. westerly, along the northerly side of WEST 41ST STREET, a distance of 126 feet 10 inches;
2. thence northerly, parallel with said westerly side of 10TH AVENUE, a distance of 98 feet 9 inches to the center line of the block;
3. thence easterly along said center line of the block, a distance of 46 feet 3 inches;
4. thence northerly, parallel with said westerly side of 10TH AVENUE, a distance of 98 feet 9 inches to the southerly side of WEST 42ND STREET;
5. thence easterly along said southerly side of WEST 42ND STREET, a distance of 134 feet 1 1/4 inches to a point therein distant westerly 144 feet 7 3/4 inches from the said westerly side of 10TH AVENUE;
6. thence southerly, along a line forming on its westerly side an angle of 90° 2' 20" with said southerly side of WEST 42ND STREET, a distance of 87 feet 7 1/2 inches;
7. thence westerly, along a line forming on its northerly side an angle of 89° 26' 10" with the previous course, a distance of 44 feet 9 7/8 inches;
8. thence southerly, along a line forming on its easterly side an angle of 100° 13' 10" with the previous course, a distance of 48 feet 9 7/8 inches;
9. thence again southerly, along a line forming on its easterly side an angle of 169° 39' 50" with the previous course, a distance of 33 feet 6 3/4 inches;
10. thence again southerly, along a line forming on its easterly side an angle of 179° 20' 10" with the previous course, a distance of 18 feet;
11. thence easterly, along a line forming on its northerly side an angle of 90° 15' 20"

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LEGAL DESCRIPTION

with the previous course, a distance of 4 inches;

12. southerly, along a line forming on its westerly side an angle of $90^{\circ} 54' 20''$ with the previous course, a distance of 10 feet 9 $\frac{1}{4}$ inches to the point or place of BEGINNING.

TOGETHER with all land lying between the above described premises and the westerly yard wall and independent walls of the premises adjoining on the east. The distances above stated are in "Block Standard" of measurement; 100 feet in "Block Standard" is 99 feet 11 $\frac{5}{8}$ inches, or 99.97 feet in United States Standard of measurement.

EXCEPTING THEREFROM:

THE portion lying below the hereinafter-described Limiting Plane of the premises bounded as follows:

NORTHERLY by the southerly side of WEST 42ND STREET;

EASTERLY by a line parallel with and distant 8 feet 6 inches easterly (and/or, in the case of a curve in the track, by a curve concentric with and distant radially 8 feet 6 inches easterly from) the center line of the easterly railroad track now on the premises described in the foregoing;

SOUTHERLY by the northerly side of WEST 41ST STREET, AND

WESTERLY by a line parallel with and distant westerly 8 feet 6 inches from (and/or, in the case of a curve in the track, by a curve concentric with and distant radially 8 feet 6 inches westerly from) the center line of the westerly railroad track now on said premises described in Schedule A. The Limiting Plane is an inclined plane determined by the following two points:

a. A point of elevation ^{h c} 2.79 feet at the intersection of the northerly side of WEST 41ST STREET with the center line of the railroad, which intersection is distant 261 feet 10 $\frac{5}{8}$ inches westerly, as measured along the northerly side of WEST 41ST STREET, from the westerly side of 10TH AVENUE; and

b. A point at elevation 11.19 feet at the intersection of the southerly line of WEST 42ND STREET with said center line of the railroad, which intersection is distant 224 feet 5 $\frac{3}{4}$ inches westerly, as measured along said southerly side of WEST 42ND STREET, from the westerly side of 10TH AVENUE, and by a horizontal line drawn at right angles to a line connecting said two points (transversely horizontal).

TOGETHER with such additional space, if any, above the Limiting Plane, as is necessary to provide, at all points on each track now on said premises, a clear headroom of 18 feet above top of rail.

^{h c} SAID elevations have reference to the datum plane of the Railroad Company which takes for its elevation 0 feet 0 inches the mean high water mark of the EAST RIVER at the foot of EAST 26TH STREET in the City of NEW YORK (which mean high water mark is 2.75 feet above the United States Coast and Geodetic Survey mean sea level datum at Sandy Hook). The

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distance (other than elevations) above stated are in Block Standard of measurement; 100 feet in "Block Standard" is 99 feet 11 5/8 inches, or 99.97 feet, in United States Standard of measurement. The elevations above stated are in the United States Standard.

BLOCK 1070 Lot 20